



BOARD OF APPEALS

MEETING AGENDA

Thursday, April 23, 2026, at 5:30 PM

City Hall Chambers Room

2424 15th Ave., South Milwaukee, WI 53172

1. Call to order and roll call.
2. Approval of November 13, 2025 minutes.
3. Public Hearing regarding a variance from Municipal Zoning Code 15.22(l)(3), property owner appealing the denial to construct a detached garage driveway access from Sixth Avenue. The property is zoned Z-3 General Urban Zone.
4. Discussion and possible action on the following:
 - A. Appeal by Gary and Cheryl Schilder for a variance from Municipal Zoning Code Section 15.22(l)(3) to construct a detached garage with access from 6th Avenue and not required alley access, property zoned Z-3 General Urban Zone, parcel number 776-0394-000
5. Adjournment.

PLEASE BE ADVISED THAT A REPRESENTATIVE OF THE APPLICANT FOR THE ABOVE ITEM MUST BE PRESENT AT THIS MEETING.

Dated this 20th day of April, 2026.

CITY OF SOUTH MILWAUKEE
Steven A. Braatz, Jr., City Clerk

Notice

Notice is hereby given that a quorum of the Common Council may be present at the above referenced meeting to gather information about all items that appear on this agenda, a subject over which they have decision making responsibility. This may constitute a meeting of the Common Council pursuant to St. ex re. Badke v. Greendale Village BD., 173 Wis.2d 553, 494 N.W.2d 408 (1993), and must be noticed as such although the Common Council will not take any formal action at this meeting.

Upon reasonable notice, a good faith effort will be made to accommodate the needs of disabled individuals through sign language, interpreters or other auxiliary aid at no cost to the individual to participate in public meetings. Due to the difficulty in finding interpreters, requests should be made as far in advance as possible, preferably a minimum of 48 hours. For additional information or to request this service, contact the South Milwaukee City Clerk at 414-762-2222 or write to the ADA Coordinator, City Hall, 2424 15th Avenue, South Milwaukee, Wisconsin 53172. The City of South Milwaukee is TDD equipped and can be accessed by calling 414-768-8060.

OFFICIAL NOTICE

**NOTICE OF PUBLIC HEARING
CITY OF SOUTH MILWAUKEE BOARD OF APPEALS**

PLEASE TAKE NOTICE, that an application has been made to the Board of Appeals in the City of South Milwaukee by property owners Gary and Cheryl Schilder of 519 Menomonee Avenue, appealing the denial to construct a detached garage with new access from the street and not the alley, noncompliant with municipal code 15.22(l). The public hearing will be held on Thursday April 23rd at 5:30 p.m. in the Common Council Chambers 2424 15th Avenue, South Milwaukee, Wisconsin. Information is available for review at the above address. Questions should be directed to Ericka Lang, at 414-762-2222 ext 135 or elang@smwi.org

Dated: April 7, 2026

Anthony Bloom
Chairperson, Board of Appeals

Publish: April 15, 2026

**CITY OF SOUTH MILWAUKEE
MINUTES OF BOARD OF APPEALS
November 13, 2025**

1. The meeting was called to order at 5:30 p.m. Board members present: Chair Anthony Bloom, Carol Bzdawka, James Davies. Gary Branger Jr., and Donald DeMont, were absent (excused).
2. Motion by Davies/Bzdawka to approve minutes from July 10, 2025 meeting. All Aye, motion passed.

3. **Public hearing regarding a variance from Municipal Zoning Code Section 15.23B, property owner appealing the denial to construct a six-foot tall fence within the street side yard. The property is zoned Z-3 General Urban Zone.**

Bloom read the public notice. Bloom called three times for public comment. No one came forward, and the Public Hearing closed at 5:31 pm with no speakers or comments.

4. **Appeal by Kelly Sobieski for a variance from Municipal Zoning Code Section 15.23 to construct a six-foot fence in the street side yard that exceeds the maximum allowed fence height at 628 Lakeview Avenue, property zoned Z-3 General Urban Zone, parcel number 819-0475-0000.**

Property owner Kelly Sobieski presented her project and explained she needs a 6-foot fence due to having two large dogs that would be able to jump a 4-foot fence. Sobieski also cited that she purchased the fence material last year due to the material being difficult to source and prior to the City Zoning Update in May 2025. Davies explained that the variance would apply specifically to the property and remain with it. He further noted that owning large dogs does not constitute a hardship unique to the property.

Motion by Davies to deny the appeal based on the fact that the hardship is based on dogs and not the property, seconded by Bzdawka.

The Chair requested a roll call vote:

Bloom - Aye

Bzdawka – Aye

Davies – Aye

Motion passes, roll call all in favor, Variance DENIED.

5. **Adjournment.**

Motion by Bloom to adjourn, seconded by Davies. Meeting adjourned at 5:46 pm.

Submitted by:

Heidi Eichner
Recording Secretary



STAFF REPORT
SOUTH MILWAUKEE BOARD OF APPEALS
April 20, 2026

RE: Request by property owners of 519 Menomonee Avenue appealing the zoning administrator's denial of constructing a detached garage with a new driveway approach access off of Sixth Avenue instead of access from the rear alley as required.

Tax ID: 773-0394-000
Property: 519 Menomonee Avenue
Current Zoning District: Z-3 General Urban Zone
Land Use: Single Family residential
Lot size: 7,199 Sq Ft

Proposed detached garage

Dimensions: 24' x 37.5' Area: 900 Sq Ft

PACKET MATERIALS:

- BOA application
- Plat of Survey Existing
- Plat of Survey proposed
- Hardship request
- Contour map
- Images and turning radius
- Zoning review and denial letter

Background

Property owners Cheryl and Gary Schilder request to raze their existing single car garage and build a larger detached garage. The current garage has an angled driveway off of the alley. The proposed garage shows a new 24-foot-wide driveway and access off of 6th Avenue, parallel to the rear alley.

There is a rear alley for all properties in the 500 block of Menomonee and Marion. The alley right-of-way is 14-feet wide and the actual alley width is 12-feet.

Codes Zoning §15.22 I: Property owners shall design and lay out all off-street motor vehicle parking areas and drive aisles per this subsection:

- (3) Alley access. Property owners shall access all parking areas from an alley if the lot has legal access to an alley. Where alley access is impossible, property owners shall prioritize vehicular access to sites from local streets.

Hardship request:

The applicant's contractor provided a hardship statement:

1. The location of a utility pole in the Southwest corner of the alley restricts vehicles turning radius. The pole is shown on the property survey.
2. If access is from the alley, the garage would be 35 feet into the yard, requiring removal of a tree and bushes and may impact drainage onto the adjacent property due to the grade change on the property.

Referring to the contour map, there is a seven-foot grade change from the back of the house to the alley.

The applicant provided pictures showing where the new garage will start and difficulties accessing it due to the utility pole if keeping an angled driveway. They also provided turning radius standards graphics from "Camera Source".

Staff Review:

- a. The City Engineer requires and supports the code requirement to minimize street access points that improves pedestrian and driver safety and to decrease infrastructure maintenance costs.
- b. The parcel is 120-feet deep and the back yard measures 72-feet deep from the back of the house to the alley. The back yard has enough space to accommodate access from the alley.
- c. Due to vehicular turning radius standards, greater setbacks are required for garages accessed from the alley. The current location shows a 3-foot setback from the alley; however, if the variance is not granted, the garage must be located further back from the alley.
- d. To provide context, garage standards for a two-car garage is 400 – 576 Sq Ft. Reducing the area of the 900 Sq Ft garage could address some of the applicant's hardship statements.

CC: Genevieve Stollenwerk, city engineer
Steve Petery, building inspector
Chris Smith, city attorney

Date: 3/23/26

City of South Milwaukee, Wisconsin

Zoning Review

Completed by: Zoning Administrator Ericka Lang

Community Development Permit #PPZ2026-0001

Property:	519 Menomonee Ave	Principal Structure Setback	24.65 Ft
Principal Use:	Single family dwelling	Principal Structure Secondary Setback	10.57 Ft
Zone:	Z-3	Front Setback Permitted:	NA Ft

Project: Replace rear yard detached single car garage along alley with two-car garage and access from street, installing driveway approach

Alley Y/N Yes

Impervious Calculations	Square Feet
Lot size	7,199
Principal structure	1060.8
Other impervious surfaces	143.95 <i>Paths, driveways, etc.</i>
Proposed new concrete slab	651.75
Proposed Accessory structure	<u>900</u> <i>Meets code for area, not to exceed Principal Structure area</i>
Total	2756.5
Impervious %	38% <i>Meets Code 60% max</i>

Lot setbacks & height

Rear setback proposed	3-ft <i>Meets 3-ft min</i>
Side interior setback proposed	5-ft <i>Meets 3-ft min</i>
Street side yard proposed	17.38 <i>Meets min principal setback</i>
	10.57 feet <i>Principal Building setback</i>
Accessory structure distance from principal structure may not be closer than 10-feet from principal	43.91-ft <i>Meets minimum 10-ft separation</i>

Height proposed	Single story w/ gable roof	<i>Meets code. Height may not exceed principal structure height. Principal structure is one story.</i>
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Architectural Standards

Materials proposed: D4 standard vinyl siding. *Meets material standards*

Principal structure has white standard siding.

Per 15.19, accessory structure buildings must match the architectural style and major building materials of principal building.

City Review

The Community Development Application is denied. The proposed detached garage driveway approach does not meeting zoning requirements. Per Sect. 15.22(3) if a lot has access from an alley, parking must be accessed from an alley. All other zoning requirements are met for height, setback, impervious %, and material site standard requirements.

RIGHT TO APPEAL

You have the right to appeal to the Board of Appeals. Per Sect 15.08, the Board of Appeals may grant a variance from the terms of the ordinance as will not be contrary to the public interest, where, owing to special conditions, a literal enforcement of the provisions of the ordinance will result in practical difficulty or unnecessary hardship, such that the applicant observes the spirit of the ordinance, secures public safety and welfare, and does substantial justice. Refer to 15.08H & I for further information on variances.

The Board of Appeals meets the 2nd Thursday of the month as needed. Once an application is received and fee paid, a meeting is scheduled. A public hearing is required for variance requests.



BOARD OF APPEALS APPLICATION

City of South Milwaukee
2424 15th Ave, South Milwaukee, WI 53172
(414) 762-2222

PPZ 2024-0002

The Board of Appeals has the authority to grant exceptions, variances or review appeals regarding determinations by the building inspector or other administrative officers.

OFFICE USE ONLY	
PERMIT #	FEE: \$175.00
DATE RECEIVED:	3.25.24
SCHEDULED MEETING:	
TAX KEY:	774 0394000

Property Address 519 Menomonee Avenue	
Owner's Information Gary & Cheryl Schilder	Applicant Information Cheryl Schilder
Name Gary & Cheryl Schilder	Name Cheryl Schilder
Address 519 Menomonee Avenue	Address 519 Menomonee Avenue
City/State/Zip South Milwaukee, WI 53172	City/State/Zip South Milwaukee, WI 53172
Phone	
Email	
Check if prefer Board of Appeals meeting agenda Emailed: ☒ Owner ☒ Applicant	
You are appealing the decision of: The zoning review for proposed garage	
Describe the reason you are applying to the Board of Appeals (attach up to 1-page typed if more room is needed) Seeking a request for variance for a public right-of-way with access to 6th Avenue (due to unique hardship)	
Describe how there is an unnecessary hardship (attach up to 1-page typed if more room is needed) See attached hardship document	
OFFICE USE ONLY – Findings of the Board of Appeals	
Appeal Ruling:	
Reason for Ruling:	

407804 317666 1 03/26/2024
PPZ2024-0002 776-0394-000-Board of
33-13-10 PAID 175.00

Check 1530

*Verify with the City prior to placement on the Board of Appeals Agenda whether site plans or other documentation are required.

*A copy of the Board of Appeals meeting agenda will be mailed to the applicant/contractor unless otherwise indicated or emailed if an email is provided.

Cheryl Schilder
Applicant Signature

MAR 25 2024

By _____



S83 W18901 Saturn Dr
Muskego, WI 53150
(P) 262.679.4800
(F) 262.679.4802

March 9, 2026

Applicants: Gary and Cheryl Schilder

Address: 519 Menomonee Avenue, South Milwaukee, WI 53172

Legal Description: Lots 15 and 16 on Block 20 in South Milwaukee Boulevard Heights, being part of the Southeast $\frac{1}{4}$ of section 11, town 5 North, Range 22 East, In the City of South Milwaukee, Milwaukee County, Wisconsin.

Proposed Project: New garage build with driveway access to 6th Avenue.

A variance will not be inconsistent with the intent of the regulation for the district in which it is requested

Due to the unusual circumstance of having a utility pole in the Southwest corner of the alley and lot, the turn radius for vehicles is restricted.

The proposed garage will run parallel to the alley. Suggested options, having garage doors open to the alley, will set the proposed garage 35 feet into the residents' back yard. This will require the removal of one (1) blue spruce and three (3) lilac bushes. While not cost prohibitive it will alter the aesthetic value of the property.

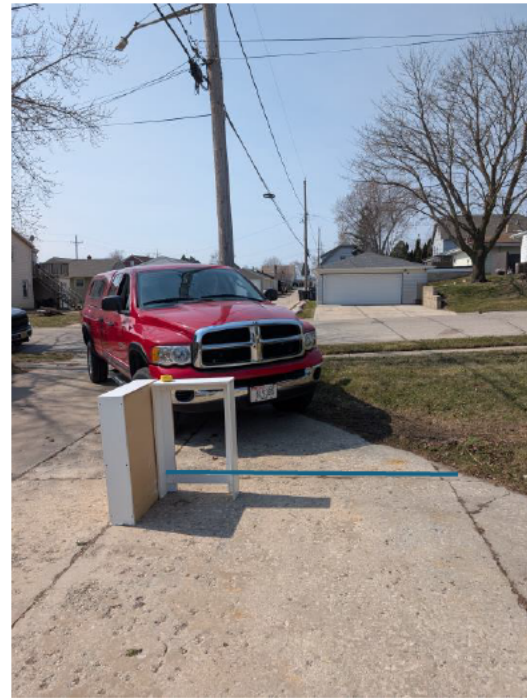
The variance will not create a substantial detriment to the adjacent property. However, the suggested placement, doors open to the alley, and garage set back 35 feet into the residents' yard, may possibly impact water drainage and cause undue harm to neighbors at 515 Menomonee Avenue. The main residence at 519 Menomonee Avenue is located on a hill, the adjacent property at 515 Menomonee Avenue is not.

The hardship is not self-imposed nor is it based solely on economic grounds. In this case a variance is requested due to the unusual nature of the utility pole placement which prevents the property owner from using their property for a permitted purpose.

Jay Bollman
General Manager

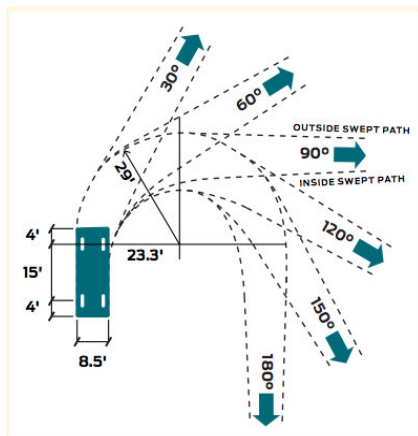


Line indicates
where garage
door will be



Current garage door
faces 6th Avenue

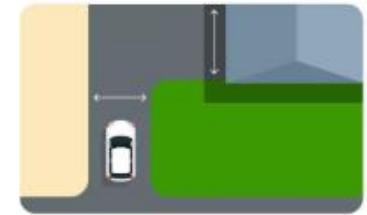
- **Vehicle Considerations for Proper Residential Driveway Turning Radius**
- Not every vehicle behaves the same when cornering, so your residential driveway turning radius should account for:
- Sedans generally turn within a 15 ft radius (inner wheel path), meaning your driveway curve can be relatively snug.
- SUVs and pickups often need 18–20 ft—plan for that if you own a larger model or anticipate guest vehicles of similar size.
- Delivery vans or small box trucks (standard wheelbase ~22 ft) may require 25 ft or more—use standard templates to confirm the swept path.
- Wheelbase length correlates strongly with radius need: every extra foot of wheelbase can add about 0.5 ft to the required turning radius.



Standard Dimensions for Side Garage Driveways

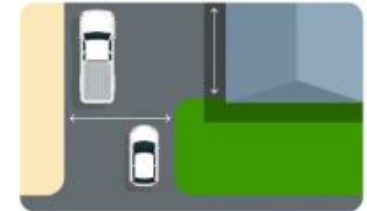
Single-Lane Width

10 ft minimum; 12 ft preferred for comfortable door opening and avoiding mirror damage.



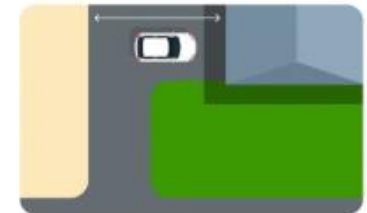
Double-Lane Width

20–24 ft ensures vehicles can pass or park side-by-side; wider preferred for slopes or angles.



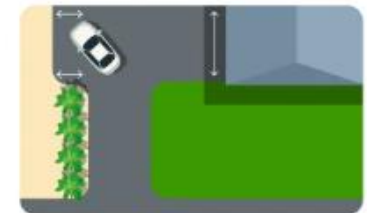
Side-Entry Length

25 ft minimum for small cars; 30 ft is a good rule of thumb; 35 ft for trucks or large SUVs.



Backup Zone Width

3–4 ft wider than the rest of the driveway allows easier maneuvering when pulling out.



Turning Radius

At least 15 ft for most cars; larger vehicles like SUVs or trucks may require 20–25 ft.



Dennis C. Sauer
Professional Land Surveyor S-2421

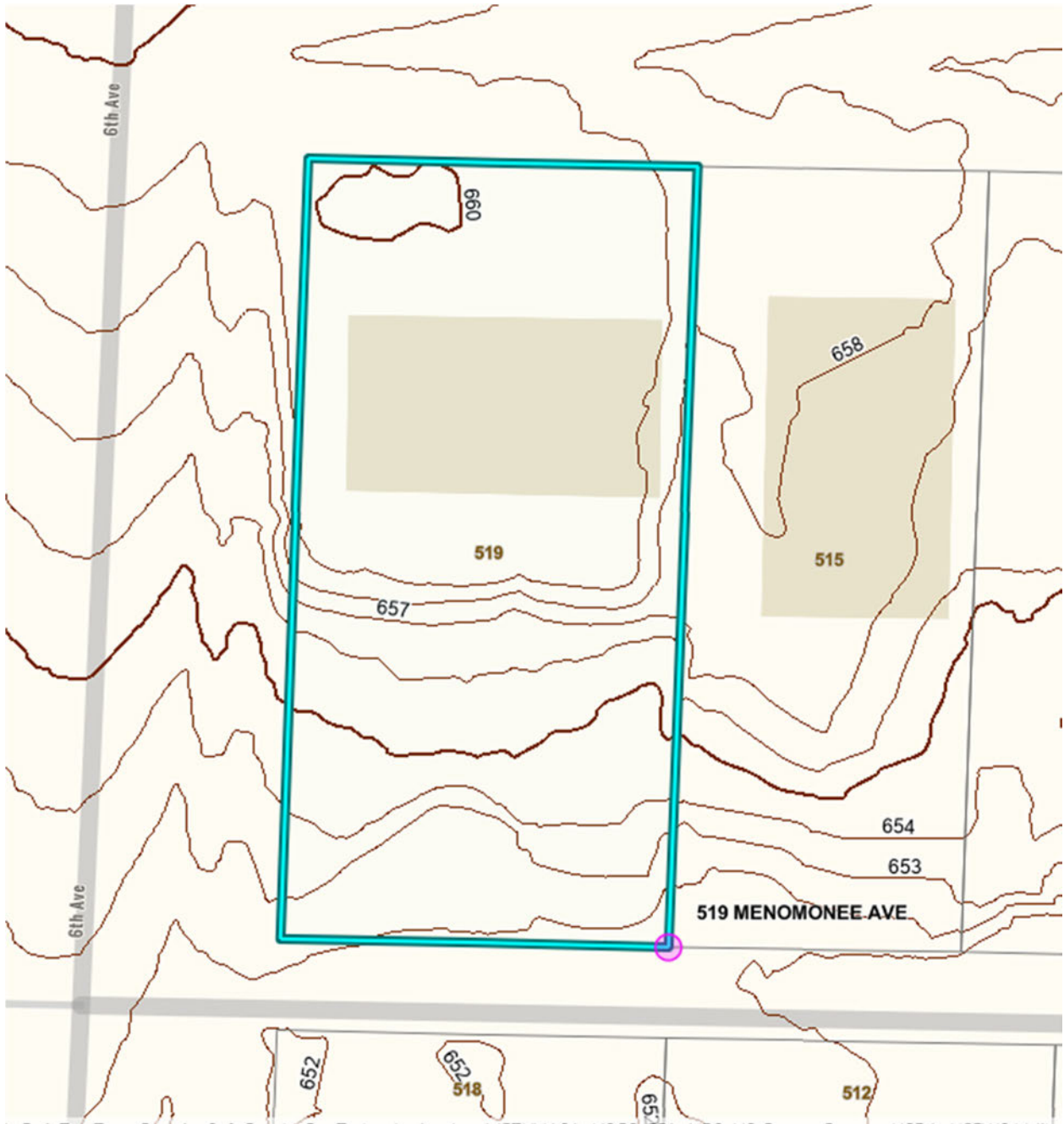
Dennis C. Sauer
Professional Land Surveyor S-2421

Contour Map 519 Menomonee Ave

Grade at alley 651 ft elevation

Grade at house 658 ft elevation

7-foot grade change from alley to rear of house



Milwaukee County GIS Map

Aerial map of block

